

Ram Naresh @ Ram Rahees Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 May 2024 · 2024:AHC:77834-DB · Writ-C No. 14308 of 2024
· **Writ disposed of as infructuous; fresh assessment per Supply Code.**

HEADNOTE

A writ against a theft-of-electricity final assessment becomes infructuous where the licensee withdraws the order and grants a fresh opportunity of objections. Any fresh final assessment must be passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner challenged an order dated 9 March 2024 of respondent no. 4 making a final assessment in a case of alleged theft of electricity and requiring him to deposit the assessed amount within fifteen days. Counsel for the Electricity Department stated that the impugned order had been withdrawn and that the petitioner had been granted a fresh opportunity to file objections, after which a fresh order would be passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

theft-final-assessment-procedure

HOLDING

Once the licensee withdraws the impugned theft assessment and undertakes a fresh opportunity to file objections, the writ does not survive and is disposed of as infructuous, with liberty to pass a fresh final assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-4

FLAG order cites the Supply Code generally, not a numbered clause

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh A writ against a theft-of-electricity final assessment becomes infructuous where the licensee withdraws the order and grants a fresh opportunity of objections. Any fresh final assessment must be passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 09.03.2024 THEFT ASSESSMENT

Impugned order withdrawn; Court did not examine the assessment. ¶ 3-4